

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ADENIKE OLANIBI,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, LUIS
MALDONADO, WILBER HERNANDEZ and JOHN or
JANE DOE 1-10,

Defendants.
-----X

Index No.:

Purchased:

SUMMONS

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in the action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 4, 2019



SIM & DEPAOLA, LLP

BY: Samuel DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

Detective LUIS MALDONADO
Shield #01341, Tax ID 950810
Narcotics Borough of Bronx
500 Abbott Street
Bronx, New York 10470

Detective WILBER HERNANDEZ
Shield #4925, Tax ID 932787
Narcotics Borough of Bronx
500 Abbott Street
Bronx, New York 10470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ADENIKE OLANIBI,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, LUIS
MALDONADO, WILBER HERNANDEZ and JOHN or
JANE DOE 1-10,

Defendants.
-----X

Plaintiff, ADENIKE OLANIBI, by her attorneys, Sim & DePaola, LLP, for her
complaint against the above Defendants, alleges as follows:

1. The claim arises from a January 9, 2018 at approximately 1:45 P.M. incident in which defendants, acting under color of state law, unlawfully arrested and detained Ms. Olanibi inside of apartment #1A of building 3230 Cruger Avenue, County of Bronx, State of New York. Ms. Olanibi was subsequently charged with possession of controlled substance, criminally using Drug paraphernalia and unlawful possession of Marijuana. As a result, Ms. Olanibi was deprived of her liberty, denied due process of law, and caused to sustain physical and emotional injuries. Ms. Olanibi was wrongfully incarcerated for approximately seven (7) days, until she was released after arraignment on approximately January 16, 2018.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff ADENIKE OLANIBI (“Ms. Olanibi”) resides at 411 East 178th Street, Apt. #215, Bronx, New York 10462.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Luis Maldonado (“Maldonado”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Maldonado was, at all times relevant herein, a Police Officer and/or detective under Shield No. 00836, Tax Reg. No. 950810, at Narcotics Borough of Bronx, 500 Abbott Street, Bronx, New York 10470. Defendant Maldonado is being sued in his individual and official capacities.
8. Defendant Wilber Hernandez (“Hernandez”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the

capacity of an agent, servant and employee of the City of New York. Defendant Hernandez was, at all times relevant herein, a Police Officer and/or detective under Shield No. 4925, Tax Reg. No. 932787, at Narcotics Borough of Bronx, 500 Abbott Street, Bronx, New York 10470. Defendant Hernandez is being sued in his individual and official capacities.

9. At all times relevant Defendants, including Maldonado and Hernandez, John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1-10 but is within knowledge of the defendants.
10. At all times relevant herein, Defendants including Maldonado and Hernandez, John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants, including Maldonado and Hernandez, John and Jane Doe 1-10 are being sued in their individual and official capacities.
11. At all times here mentioned Defendants, including Maldonado and Hernandez, John and Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

14. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On January 9, 2018 at approximately 1:45 P.M., Ms. Olanibi was inside apartment #1A of building 3230 Cruger Avenue, Bronx, State of New York.
17. Ms. Olanibi was maliciously processed inside of to be believed the 47th NYPD precinct, located on 4111 Laconia Avenue, Bronx, New York 10466.
18. Ms. Olanibi was charged for alleged Criminal Possession of Controlled Substance, criminally using Drug Paraphernalia and Unlawful Possession of Marijuana.
19. Plaintiff never committed any crimes or violations of the law, including the Criminal Possession of Illegal Controlled Substance or Criminally used Paraphernalia.
20. On the day of January 9, 2018 Ms. Olanibi was in apartment #1A of building 3230 Cruger Avenue, Bronx, State of New York.
21. Ms. Olanibi was sitting on the couch located in the common area of the apartment. Ms. Olanibi was having a conversation with the occupant of the apartment.
22. The conversation between the occupant and Ms. Olanibi does not raise probable cause for arrest.
23. Ms. Olanibi was committing no crimes or violations of any law and was simply sitting on the couch of the common area in the apartment.

24. Ms. Olanibi was in the Apartment for approximately ten (10) minutes before Defendants, including Defendant Maldonado and Defendant Hernandez forced their entrance.
25. Defendants, including Defendant Maldonado and Defendant Hernandez entered the apartment and ordered all of the occupants to get down on the ground and remain silent. Defendants battered all occupants including Ms. Olanibi.
26. Defendants, including Defendant Maldonado and Defendant Hernandez committed multiple assault and batteries to Ms. Olanibi's person and placed her in metal handcuffs which were placed too tight.
27. Ms. Olanibi experienced the stop of blood flow to her hands due to the negligence of the Defendants. Further aggravating her arms and causing numbness.
28. Ms. Olanibi was illegally searched and confined without her consent.
29. Ms. Olanibi was not a resident of the apartment as she was just visiting. Defendants, including Defendant Maldonado and Defendant Hernandez, did not find controlled substance, paraphernalia or marijuana on Ms. Olanibi's person.
30. Defendants, including Defendant Maldonado and Defendant Hernandez, placed Ms. Olanibi in the NYPD patrol van for one (1) hour until they searched the apartment.
31. At no point in time did Defendants, including Defendant Maldonado and Defendant Hernandez, ever observe Ms. Olanibi commit any crimes or violations of the law.
32. Ms. Olanibi was falsely arrested for allegedly possessing marijuana and being in criminal possession of controlled substances, despite that fact that she was never in statutory, constructive or actual possession of any such contraband.

33. Ms. Olanibi was handcuffed in the patrol van for about one (1) hour before she was taken to, believed to be the 47th precinct.
34. Ms. Olanibi suffered mental depression/anxiety and experienced muscle ache from the low temperatures in the cell for five (5) hours.
35. Ms. Olanibi was then transported to Rikers Island Correctional Facility where she served seven (7) days.
36. Ms. Olanibi asserts that Defendants, including Defendant Maldonado and Defendant Hernandez, stopped, searched and arrested her without probable cause or reasonable doubt, as Ms. Olanibi was merely talking with her friend on the couch in the common area of the apartment when Defendants broke in the apartment and seized her person.
37. Defendants, including Maldonado, also falsely claimed to have recovered controlled substance from Ms. Olanibi's person. Ms. Olanibi vehemently asserts that Defendants claim is without merit, as she was never in possession of any illegal substances.
38. Upon arrival at the precinct, Ms. Olanibi was illegally strip searched.
39. Defendants, including Defendant Maldonado and Defendant Hernandez, were fully aware, at all times, that they lacked probable cause to arrest Ms. Olanibi.
40. Defendants, including Defendant Maldonado and Defendant Hernandez, lacked probable cause because they used improper and suggestive identification procedures and coercion to unlawfully accuse and arrest Ms. Olanibi of a crime Defendants knew she did not commit.
41. Defendants, including Defendant Hernandez assisted Ms. Olanibi's arresting officer and signed her criminal court complaint, knowingly and falsely accusing Ms. Olanibi of possessing illegal controlled substance or using paraphernalia.

42. Defendants, including Defendant Maldonado and Defendant Hernandez, procured Ms. Olanibi's indictment via fraud, perjury, the suppression of evidence and other conduct undertaken in bad faith, including, but not limited to entering the apartment without showing a warrant.
43. 38. Defendants, including Defendant Maldonado and Defendant Hernandez, committed gross deviations from proper police procedure throughout the course of their investigation of Ms. Olanibi, namely the failure to properly document their investigation, the use of improper identification procedures to better suit their purpose of arresting and convicting Ms. Olanibi for a crime Defendants knew she did not commit.
44. At no point did the Defendants, including Defendant Maldonado and Defendant Hernandez, ever observe Ms. Olanibi commit any crime or offense.
45. At no point were Defendants, including Defendant Maldonado and Defendant Hernandez, ever told by any witnesses that Ms. Olanibi committed any crime or violation of the law.
46. Defendants, including Defendant Maldonado and Defendant Hernandez, had no probable cause or reasonable suspicion to arrest, detain or stop Ms. Olanibi.
47. Ms. Olanibi did not violate any law or local ordinance.
48. Defendants, including Defendant Maldonado and Defendant Hernandez, were fully aware that there was no probable cause to believe a prosecution would succeed against Ms. Olanibi.
49. Defendants, including Defendant Maldonado and Defendant Hernandez, knowingly and intentionally forwarded false, misleading, incomplete and erroneous information,

namely the possession of illegal substance or usage or paraphernalia, to prosecutors so that a prosecution would be initiated against Ms. Olanibi.

50. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
51. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
52. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.
53. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
54. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Norman.

55. At all times relevant hereto, Defendants, including Defendant Maldonado and Defendant Hernandez, acted maliciously and with intent to injure Plaintiff.
56. At all times relevant hereto, Defendants, including Defendant Maldonado and Defendant Hernandez, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
57. At all times relevant hereto, Defendants, including Defendant Maldonado and Defendant Hernandez, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
58. As a direct and proximate result of the acts of Defendants, including the City of New York, Plaintiff suffered the following injuries and damages: violations of her rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
61. Plaintiff was conscious of her confinement.

62. Plaintiff did not consent to her confinement.
63. Plaintiff's arrest and false imprisonment was not otherwise privileged.
64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
69. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
70. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
71. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
72. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

73. The above paragraphs are here incorporated by reference as though fully set forth.
74. Defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
75. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
78. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

79. The above paragraphs are here incorporated by reference as though fully set forth.
80. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
81. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered her without her consent.

82. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

83. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.

85. Defendants initiated the prosecution against Plaintiff.

86. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

87. Defendants acted with malice.

88. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed on October 4, 2018 before the Hon. M. Hartofilis.

89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

91. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.

93. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
94. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
95. Defendants acted with malice.
96. The prosecution was terminated in Plaintiff's favor when she was acquitted of all charges.
97. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
99. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth.
101. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
102. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
103. Defendants intended to inflict substantial harm upon Plaintiff.
104. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

107. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

108. The above paragraphs are here incorporated by reference as though fully set forth.

109. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

110. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

111. Defendants intended to inflict substantial harm upon Plaintiff.

112. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

113. Defendants' actions deprived Plaintiff of her right to free from illegal searches and seizures, as well as her right not to be deprived of her liberty without due process of law.

114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

115. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

116. The above paragraphs are here incorporated by reference as though fully set forth.

117. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

118. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

121. The above paragraphs are here incorporated by reference as though fully set forth.

122. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
123. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
126. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION
Negligent Hiring, Retention and Supervision Under
New York State Law

127. The above paragraphs are here incorporated by reference as though fully set forth.
128. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee Defendants.
129. Defendant City breached that duty of care.
130. Defendant City placed Defendants in a position where they could inflict foreseeable harm.
131. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States

Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

132. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.
133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
134. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

135. The above paragraphs are here incorporated by reference as though fully set forth.
136. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiff to be deprived of her Constitutional right to free from illegal searches and seizures.
137. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
138. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

139. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

140. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

142. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
Together with the costs and disbursements of this action

Dated: Bayside, New York
December 4, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiff
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains her office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 4, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ADENIKE OLANIBI,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, LUIS MALDONADO, WILBER HERNANDEZ and JOHN or JANE DOE 1-10,
Defendants

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for